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This Instrument Prepared by and Return to:
W. James Gooding III
Gilligan, King, Gooding & Gifford, P.A.
1531 SE 36th Avenue
Ocala, FL. 34471

RECORDING FEES 86.50

Recording Costs: \$ 86.50

**FIRST AMENDMENT TO DECLARATION OF COVENANTS
AND RESTRICTIONS FOR AVONLEA¹**

THIS AMENDMENT TO DECLARATION OF COVENANTS AND RESTRICTIONS FOR AVONLEA (hereinafter referred to as the "Amendment") is made on the date of execution hereof by Avonlea, LLC, a Florida limited liability company (hereinafter referred to as "Declarant"), and Avonlea Homeowners Association, Inc., a Florida not for profit corporation ("Association").

WHEREAS:

- A. On or about June 20, 2007, Declarant caused to be recorded a Declaration of Covenants and Restrictions for Avonlea (the "*Original Declaration*") in Official Records Book 4822, Page 759, public records of Marion County, Florida.
- B. In connection therewith, Declarant caused the Association to be incorporated.
- C. Declarant owns all of the Property² subject to the Original Declaration.
- D. The Property has been platted pursuant to the Plats as set forth in the Original Declaration.
- E. Pursuant to the Plats, Owner dedicated certain conservation easements to the Water Management District, and imposed certain restrictions upon the portions of the Property subject thereto.
- F. Pursuant to the Agreement Concerning Conservation Easements, Owner, the Association and the Water Management District are amending the restrictions upon the use of certain portions of the Property subject to the dedicated conservation easements, and Owner is granting to the Water Management District additional conservation easements over additional portions of the Property.
- G. Declarant desires to amend the Original Declaration as set forth herein.

NOW, THEREFORE, Declarant and the Association hereby amend the Original Declaration, and state and agree as follows:

1. **Definitions.** The following new paragraphs are added to the definitions in paragraph 1 of the Original Declaration to read as follows:

¹ This instrument is a re-recording of the instrument recorded in O.R. Book 5094, page 483, public records, Marion County, Florida, to fill in blank in paragraph 1.1.B. and to attach Exhibits A and B hereto.

² Terms capitalized herein and not otherwise defined herein have the same meaning herein as in the Original Declaration.

1.1.A. *Additional Easements* - The Additional Conservation Easements granted to the Water Management District pursuant to paragraph 3 of the Agreement Concerning Conservation Easements. The Additional Easements are described in the attached Exhibit A (which exhibit is identical to Exhibit B to the Agreement Concerning Conservation Easements).

1.1.B. *Agreement Concerning Conservation Easements* - The Agreement Concerning Conservation Easements between Owner, the Association and the Water Management District recorded in OR Book 5094, Page 456, public records of Marion County, Florida.

1.7.A. *Conservation Easements* - The Conservation Easements set forth on the Plat together with the Additional Easements.

1.10.A. *Dock Access Areas* - The portions of the Property dedicated as Conservation Easements on the Plat, as amended pursuant to paragraph 2 of the Agreement Concerning Conservation Easements. For ease of reference, the Dock Access Areas are further described in the attached Exhibit B (such exhibit identical to Exhibit A to the Agreement Concerning Conservation Easements).

1.15.A *Permitted Activities* - The construction, maintenance or repair of docks/piers and a community boat ramp in the Dock Access Areas, pursuant to and subject to the limitations and restrictions contained in paragraph 2 of the Agreement Concerning Conservation Easements.

2. **Conservation Easements.** Paragraph 2.9 of the Original Declaration is amended to read as follows.

2.9. **Conservation Easements.** As set forth on the Plats and the Agreement Concerning Conservation Easements, and pursuant to the provisions of Section 704.06, Florida Statutes, Declarant has voluntarily granted and conveyed or will voluntarily grant and convey to the Water Management District, a conservation easement in perpetuity over areas designated on the Plats as "Conservation Easement Areas A, B, C, D and E", and referred to in the Agreement Concerning Conservation Easements, and herein, as the "Additional Easements." Declarant fully warrants title to said Conservation Easement Areas, and will warrant and defend the same against the lawful claims of all persons whomsoever. Declarant granted this Conservation Easement as a condition of permit number 4-083-102651-2 issued by the Water Management District, to offset adverse impacts and to prevent secondary impacts to natural resources, fish and wildlife, and wetland functions.

2.9.1. Purpose. The purpose of this Conservation Easement is to assure that the Conservation Easement Areas will be retained forever in their existing natural condition and to prevent any use of the Conservation Easement Areas that will impair or interfere with the environmental value of these areas.

2.9.2. Prohibited Uses. Any activity in or use of the Conservation Easement

Areas inconsistent with the purpose of this Conservation Easement is prohibited. Without limiting the generality of the foregoing, the following activities and uses are expressly prohibited:

- a. Construction or placing buildings, roads, signs, billboards or other advertising, utilities or other structures on or above the ground, except as specified in Section 2.9.5, *Reserved Rights*, below.
- b. Dumping or placing soil or other substance or material as landfill or dumping or placing of trash, waste or unsightly or offensive materials.
- c. Removing, destroying or trimming trees, shrubs, or other vegetation.
- d. Excavating, dredging or removing loam, peat, gravel, soil, rock or other material substances in such a manner as to affect the surface.
- e. Surface use, except for purposes that permit the land or water area to remain predominantly in its natural condition.
- f. Activities detrimental to drainage, flood control, water conservation, erosion control, soil conservation, or fish and wildlife habitat preservation.
- g. Acts or uses detrimental to such retention of land or water areas.
- h. Acts or uses detrimental to the preservation of the structural integrity or physical appearance of sites or properties of historical, architectural, archaeological, or cultural significance.

2.9.3. Responsibilities. The Declarant, its successors and assigns, shall be responsible for the periodic removal of trash and other debris which may accumulate in the Conservation Easement Areas.

2.9.4. Riparian Rights. This Conservation Easement shall convey to the Water Management District Declarant's riparian rights of ingress and egress for docks, piers, boat ramps, and other water dependent structures, except as may be necessary to construct, use, and maintain the docks/piers or boat ramp in the Dock Access Areas pursuant to Paragraph 2.9.5 below.

2.9.5. Reserved Rights. Declarant reserves unto itself, and its successors and assigns, all rights accruing from its ownership of the Conservation Easement Areas, including the right to engage in or permit or invite others to engage in all uses of the Conservation Easement Areas, that are not expressly prohibited herein and are not inconsistent with the purpose of this Conservation Easement. Notwithstanding the prohibitions contained in Section 2.9.2, *Prohibited Uses*, Declarant reserves unto itself, and its successors and assigns, the right to:

- a. Implement the mitigation activities authorized by the Permit.
- b. Construct, maintain and use the docks/piers or boat ramp in the Dock

Access Areas in accordance with the Permit and the Agreement Concerning Conservation Easements. Declarant or subsequent lot owners must obtain all necessary local, state, and federal permits prior to the commencement of any construction of docks/piers. The Dock Access Areas may be used consistent with the Permitted Activities as set forth in paragraph 2.2 of the Agreement Concerning Conservation Easements, subject to the limitations and restrictions set forth in paragraph 2.3 of the Agreement Concerning Conservation Easements.

2.9.6. Rights of Water Management District. To accomplish the purposes stated herein, the Declarant conveys the following rights to the Water Management District:

- a. To enter upon and inspect the Conservation Easement Areas in a reasonable manner and at reasonable times to determine if Declarant or its successors and assigns are complying with the covenants and prohibitions contained in this Conservation Easement.
- b. To proceed at law or in equity to enforce the provisions of this Conservation Easement and the covenants set forth herein, to prevent the occurrence of any of the prohibited activities set forth herein, and require the restoration of areas or features of the Conservation Easement Areas that may be damaged by any activity inconsistent with this Conservation Easement.

2.9.7. Water Management District's Discretion. Water Management District may enforce the terms of this Conservation Easement at its discretion, but if Declarant breaches any term of this Conservation Easement and Water Management District does not exercise its rights under this Conservation Easement, Water Management District's forbearance shall not be construed to be a waiver by Water Management District of such term, or of any subsequent breach of the same, or any other term of this Conservation Easement, or of any of the Water Management District's rights under this Conservation Easement. No delay or omission by the Water Management District in the exercise of any right or remedy upon any breach by Declarant shall impair such right or remedy or be construed as a waiver. Water Management District shall not be obligated to Declarant, or to any other person or entity, to enforce the provisions of this Conservation Easement.

2.9.8. Water Management District's Liability. Declarant will assume all liability of the Water Management District, if any, for any injury or damage to the person or property of third parties which may occur in the Conservation Easement Areas arising from Declarant's ownership of the Conservation Easement Areas; this assumption is solely for the purpose of assuring that Declarant, and not Water Management District, is liable for any such injury or damage, does not represent an additional undertaking of liability of Declarant beyond any that may exist as part of Declarant or Water Management District under applicable law, and shall not affect the provisions of the last sentence of this paragraph. Neither Declarant, nor any person or entity claiming by or through Declarant,

shall hold Water Management District liable for any damage or injury to person or personal property which may occur in the Conservation Easement Areas.

2.9.9. Acts Beyond Declarant's Control. Nothing contained in this Conservation Easement shall be construed to entitle Water Management District to bring any action against Declarant for any injury to or change in the Conservation Easement Areas resulting from natural causes beyond Declarant's control, including, without limitation, fire, flood, storm and earth movement, or from any necessary action taken by Declarant under emergency conditions to prevent, abate or mitigate significant injury to the Conservation Easement Areas or to persons resulting from such causes.

2.9.10. Amendment. The provisions of this Conservation Easement may not be amended without the prior written approval of the Water Management District.

2.9.11. Successors. The covenants, terms, conditions and restrictions of this Conservation Easement shall be binding upon, and inure to the benefit of the parties hereto and their respective personal representatives, heirs, successors and assigns and shall continue as a servitude running in perpetuity with the Conservation Easement Areas.

3. **Amendment Concerning Docks.** Paragraph 5.12 is added to Article V of the Original Declaration to read as follows:

5.12. **Dock Access Areas.**

5.12.1. Lot Owners who own Lots in the Dock Access Areas may engage in the Permitted Activities in the Dock Access Areas pursuant to paragraph 2.2 of the Agreement Concerning Conservation Easements, subject to the limitations and restrictions set forth in paragraph 2.3 of the Agreement Concerning Conservation Easements.

5.12.2. No Lot Owner may object to another Lot Owner engaging in the Permitted Activities in the Dock Access Areas based upon the language in the Plats restricting activities in the Conservation Easements. Rather, each Lot Owner is hereby advised that the restrictions contained on the Plats have been modified pursuant to the Agreement Concerning Conservation Easements.

4. **Attorney's Fees.** The following sentence is added at the end of Paragraph 8.5 of the Original Declaration:

However, in any action in which the Water Management District is a party, no attorney's fees shall be awarded to the Water Management District, nor shall the Water Management District pay any other party's attorney's fees.

5. **Joinder by Association.** Although not required by the Original Declaration, the Association executes this Amendment to acknowledge its consent hereto.
6. **Effect on Original Declaration.** Except as expressly set forth herein, the Original Declaration is not amended or modified. All references herein or in the Original Declaration to "this Declaration," "this Agreement," or similar terms, shall be deemed to refer to the Original Declaration as amended hereby.

DATED this 17 day of SEPTEMBER, 2008.

Avonlea, LLC, a Florida limited liability company

Witness [Signature]
W. JAMES GOODING III
Print Witness Name
Witness [Signature]
KARLA S. HAYTER
Print Witness Name

By: [Signature]
Harvey Vandeven as Manager

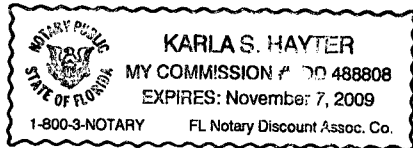
Avonlea Homeowners Association, Inc., a Florida not for profit corporation

Witness [Signature]
W. JAMES GOODING III
Print Witness Name
Witness [Signature]
KARLA S. HAYTER
Print Witness Name

By: [Signature]
Harvey Vandeven as President

STATE OF FLORIDA
COUNTY OF MARION

The foregoing instrument was acknowledged before me this 17 day of SEPTEMBER 2008, by Harvey Vandeven, as Manager of Avonlea, LLC, a Florida limited liability company, on behalf of the company, and as President of Avonlea Homeowners Association, Inc., a Florida not for profit corporation, on behalf of the corporation.



Karla S. Hayter
Notary Public, State of Florida
Name: KARLA S. HAYTER
(Please print or type)

Commission Number:
Commission Expires:

Notary: Check one of the following:

- ☒ Personally known OR
☐ Produced Identification (if this box is checked, fill in blank below).
Type of Identification Produced: _____

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CONSERVATION EASEMENT 1

A PORTION OF LOT 21 OF "AVONLEA PHASE 1", AS PER PLAT THEREOF RECORDED IN PLAT BOOK '10', PAGES 195 THROUGH 203 INCLUSIVE, OF THE PUBLIC RECORDS OF MARION COUNTY, FLORIDA, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCE AT THE N.E. CORNER OF SAID LOT 21; THENCE ALONG THE NORTH BOUNDARY OF SAID LOT 21, N.89°39'20"W., A DISTANCE OF 425.50 FEET; THENCE DEPARTING SAID NORTH BOUNDARY, S.17°31'47"W., A DISTANCE OF 62.80 FEET TO THE POINT OF BEGINNING.

THENCE S.89°39'20"E., A DISTANCE OF 15.70 FEET; THENCE S.17°31'47"W., A DISTANCE OF 140.47 FEET; THENCE S.21°10'52"W., A DISTANCE OF 2.26 FEET; THENCE S.21°13'29"W., A DISTANCE OF 185.27 FEET TO THE SOUTHWESTERLY BOUNDARY OF SAID LOT 21; THENCE ALONG SAID SOUTHWESTERLY BOUNDARY, N.63°26'06"W., A DISTANCE OF 15.07 FEET; THENCE DEPARTING SAID SOUTHWESTERLY BOUNDARY, N.21°10'52"E., A DISTANCE OF 183.37 FEET; THENCE N.17°31'47"E., A DISTANCE OF 133.07 FEET TO THE POINT OF BEGINNING. THE ABOVE DESCRIBED LAND CONTAINS 0.11 ACRES, MORE OR LESS (4,799 SQUARE FEET).

CONSERVATION EASEMENT 2

A PORTION OF LOT 31 OF "AVONLEA PHASE 2", AS PER PLAT THEREOF RECORDED IN PLAT BOOK '11', PAGES 1 THROUGH 5 INCLUSIVE, OF THE PUBLIC RECORDS OF MARION COUNTY, FLORIDA, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCE AT THE EASTERNMOST CORNER OF SAID LOT 31; THENCE ALONG THE NORTHEASTERLY BOUNDARY OF SAID LOT 31, N.63°26'06"W., A DISTANCE OF 514.01 FEET TO THE POINT OF BEGINNING.

THENCE DEPARTING SAID NORTHEASTERLY BOUNDARY, S.21°10'52"W., A DISTANCE OF 7.46 FEET; THENCE S.28°20'40"W., A DISTANCE OF 166.80 FEET; THENCE S.38°15'06"W., A DISTANCE OF 117.38 FEET TO THE SOUTHWESTERLY BOUNDARY OF SAID LOT 31; THENCE ALONG SAID SOUTHWESTERLY BOUNDARY, N.63°26'06"W., A DISTANCE OF 15.63 FEET; THENCE DEPARTING SAID SOUTHWESTERLY BOUNDARY, N.38°15'06"E., A DISTANCE OF 118.09 FEET; THENCE N.28°20'40"E., A DISTANCE OF 164.56 FEET; THENCE N.21°10'52"E., A DISTANCE OF 7.94 FEET TO AFORESAID NORTHEASTERLY BOUNDARY OF LOT 31; THENCE ALONG SAID NORTHEASTERLY BOUNDARY, S.63°26'06"E., A DISTANCE OF 15.07 FEET TO THE POINT OF BEGINNING. THE ABOVE DESCRIBED LAND CONTAINS 0.10 ACRES, MORE OR LESS (4,375 SQUARE FEET).

CONSERVATION EASEMENT 3

A PORTION OF LOT 32 OF "AVONLEA PHASE 2", AS PER PLAT THEREOF RECORDED IN PLAT BOOK '11', PAGES 1 THROUGH 5 INCLUSIVE, OF THE PUBLIC RECORDS OF MARION COUNTY, FLORIDA, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCE AT THE NORTHEASTERLY CORNER OF SAID LOT 32; THENCE ALONG THE NORTHEASTERLY BOUNDARY OF SAID LOT 32, N.63°26'06"W., A DISTANCE OF 599.89 FEET TO THE POINT OF BEGINNING.

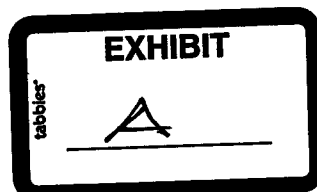
THENCE DEPARTING SAID NORTHEASTERLY BOUNDARY, S.38°15'06"W., A DISTANCE OF 3.94 FEET; THENCE S.52°55'10"W., A DISTANCE OF 81.71 FEET; THENCE S.67°00'42"W., A DISTANCE OF 83.85 FEET; THENCE S.82°18'03"W., A DISTANCE OF 64.73 FEET; THENCE S.26°33'54"W., A DISTANCE OF 62.60 FEET; THENCE N.24°00'17"W., A DISTANCE OF 83.15 FEET; THENCE S.82°50'26"E., A DISTANCE OF 51.00 FEET; THENCE N.82°18'03"E., A DISTANCE OF 72.01 FEET; THENCE N.67°00'42"E., A DISTANCE OF 79.99 FEET; THENCE N.52°55'10"E., A DISTANCE OF 76.73 FEET TO THE AFORESAID NORTHEASTERLY BOUNDARY OF LOT 32; THENCE ALONG SAID NORTHEASTERLY BOUNDARY, S.63°26'06"E., A DISTANCE OF 15.63 FEET TO THE POINT OF BEGINNING. THE ABOVE DESCRIBED LAND CONTAINS 0.13 ACRES, MORE OR LESS (5,792 SQUARE FEET).

CONSERVATION EASEMENT 4

A PORTION OF LOT 37 OF "AVONLEA PHASE 2", AS PER PLAT THEREOF RECORDED IN PLAT BOOK '11', PAGES 1 THROUGH 5 INCLUSIVE, OF THE PUBLIC RECORDS OF MARION COUNTY, FLORIDA, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCE AT THE NORTHWESTERLY CORNER OF SAID LOT 37; THENCE ALONG THE NORTH BOUNDARY OF SAID LOT 37, S.89°51'55"E., A DISTANCE OF 247.40 FEET TO THE POINT OF BEGINNING.

THENCE CONTINUE ALONG SAID NORTH BOUNDARY, S.89°51'55"E., A DISTANCE OF 16.72 FEET; THENCE DEPARTING SAID NORTH BOUNDARY, S.26°06'34"E., A DISTANCE OF 49.26 FEET; THENCE S.44°09'17"E., A DISTANCE OF 95.46 FEET; THENCE S.60°52'50"E., A DISTANCE OF 207.51 FEET; THENCE S.74°36'32"W., A DISTANCE OF 85.24 FEET; THENCE S.53°48'11"W., A DISTANCE OF 41.44 FEET; THENCE N.12°55'53"E., A DISTANCE OF 85.82 FEET; THENCE N.60°52'50"W., A DISTANCE OF 107.69 FEET; THENCE N.44°09'17"W., A DISTANCE OF 100.05 FEET; THENCE N.26°06'34"W., A DISTANCE OF 59.03 FEET TO THE POINT OF BEGINNING. THE ABOVE DESCRIBED LAND CONTAINS 0.19 ACRES, MORE OR LESS (8,339 SQUARE FEET).



PIER EASEMENT 1

A PORTION OF LOT 21 OF "AVONLEA PHASE 1", AS PER PLAT THEREOF RECORDED IN PLAT BOOK '10', PAGES 195 THROUGH 203 INCLUSIVE, OF THE PUBLIC RECORDS OF MARION COUNTY, FLORIDA, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCE AT THE N.E. CORNER OF SAID LOT 21; THENCE ALONG THE NORTH BOUNDARY OF SAID LOT 21, N.89°39'20"W., A DISTANCE OF 425.50 FEET; THENCE DEPARTING SAID NORTH BOUNDARY, S.17°31'47"W., A DISTANCE OF 62.80; THENCE S.89°39'20"E., A DISTANCE OF 15.70 FEET; THENCE S.17°31'47"W., A DISTANCE OF 140.47 FEET; THENCE S.21°10'52"W., A DISTANCE OF 2.26 FEET TO THE POINT OF BEGINNING.

THENCE S.21°10'52"W., A DISTANCE OF 8.06 FEET; THENCE N.62°03'24"W., A DISTANCE OF 113.26 FEET TO THE ORDINARY HIGH WATER LINE OF SMITH LAKE AS ESTABLISHED BY THE DEPARTMENT OF ENVIRONMENTAL PROTECTION, BASED ON ELEVATION 52.76 FEET (N.A.V.D. 88); THENCE NORTHEASTERLY ALONG AND WITH SAID ORDINARY HIGH WATER, THROUGH A BEARING OF N.19°33'42"E., A DISTANCE OF 8.09 FEET; THENCE DEPARTING SAID ORDINARY HIGH WATER LINE, S.62°03'24"E., A DISTANCE OF 113.49 FEET TO THE POINT OF BEGINNING. THE ABOVE DESCRIBED LAND CONTAINS 0.02 ACRES, MORE OR LESS (906 SQUARE FEET).

PIER EASEMENT 2

A PORTION OF LOT 31 OF "AVONLEA PHASE 2", AS PER PLAT THEREOF RECORDED IN PLAT BOOK '11', PAGES 1 THROUGH 5 INCLUSIVE, OF THE PUBLIC RECORDS OF MARION COUNTY, FLORIDA, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCE AT THE EASTERNMOST CORNER OF SAID LOT 31; THENCE ALONG THE NORTHEASTERLY BOUNDARY OF SAID LOT 31, N.63°26'06"W., A DISTANCE OF 514.01 FEET; THENCE DEPARTING SAID NORTHEASTERLY BOUNDARY, S.21°10'52"W., A DISTANCE OF 7.46 FEET; THENCE S.28°20'40"W., A DISTANCE OF 120.83 FEET TO THE POINT OF BEGINNING.

THENCE S.28°20'40"W., A DISTANCE OF 8.06 FEET; THENCE N.54°43'05"W., A DISTANCE OF 101.11 FEET TO THE ORDINARY HIGH WATER LINE OF SMITH LAKE AS ESTABLISHED BY THE DEPARTMENT OF ENVIRONMENTAL PROTECTION, BASED ON ELEVATION 52.76 FEET (N.A.V.D. 88); THENCE ALONG AND WITH SAID ORDINARY HIGH WATER LINE, N.30°32'42"E., A DISTANCE OF 8.03 FEET; THENCE DEPARTING SAID ORDINARY HIGH WATER LINE, THROUGH A BEARING OF S.54°43'05"E., A DISTANCE OF 100.80 FEET TO THE POINT OF BEGINNING. THE ABOVE DESCRIBED LAND CONTAINS 0.02 ACRES, MORE OR LESS (808 SQUARE FEET).

PIER EASEMENT 3

A PORTION OF LOT 32 OF "AVONLEA PHASE 2", AS PER PLAT THEREOF RECORDED IN PLAT BOOK '11', PAGES 1 THROUGH 5 INCLUSIVE, OF THE PUBLIC RECORDS OF MARION COUNTY, FLORIDA, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCE AT THE NORTHEASTERLY CORNER OF SAID LOT 32; THENCE ALONG THE NORTHEASTERLY BOUNDARY OF SAID LOT 32, N.63°26'06"W., A DISTANCE OF 599.89 FEET; THENCE DEPARTING SAID NORTHEASTERLY BOUNDARY, S.38°15'06"W., A DISTANCE OF 3.94 FEET; THENCE S.52°55'10"W., A DISTANCE OF 81.71 FEET; THENCE S.67°00'42"W., A DISTANCE OF 83.85 FEET; THENCE S.82°18'03"W., A DISTANCE OF 45.42 FEET TO THE POINT OF BEGINNING.

THENCE CONTINUE S.82°18'03"W., A DISTANCE OF 8.02 FEET; THENCE N.11°48'12"W., A DISTANCE OF 98.68 FEET TO THE ORDINARY HIGH WATER LINE OF SMITH LAKE AS ESTABLISHED BY THE DEPARTMENT OF ENVIRONMENTAL PROTECTION, BASED ON ELEVATION 52.76 FEET (N.A.V.D. 88); THENCE ALONG AND WITH SAID ORDINARY HIGH WATER LINE, N.86°09'37"E., A DISTANCE OF 8.08 FEET; THENCE DEPARTING SAID ORDINARY HIGH WATER LINE, THROUGH A BEARING OF S.11°48'12"E., A DISTANCE OF 98.13 FEET TO THE POINT OF BEGINNING. THE ABOVE DESCRIBED LAND CONTAINS 0.02 ACRES, MORE OR LESS (787 SQUARE FEET).

PIER EASEMENT 4

COMMENCE AT THE NORTHWESTERLY CORNER OF SAID LOT 37; THENCE ALONG THE NORTH BOUNDARY OF SAID LOT 37, S.89°51'55"E., A DISTANCE OF 247.40 FEET; THENCE DEPARTING SAID NORTH BOUNDARY, S.26°06'34"E., A DISTANCE OF 59.03 FEET; THENCE S.44°05'17"E., A DISTANCE OF 100.05 FEET; THENCE S.60°52'50"E., A DISTANCE OF 99.36 FEET TO THE POINT OF BEGINNING.

THENCE N.12°55'53"E., A DISTANCE OF 119.01 FEET TO THE ORDINARY HIGH WATER LINE OF SMITH LAKE AS ESTABLISHED BY THE DEPARTMENT OF ENVIRONMENTAL PROTECTION, BASED ON ELEVATION 52.76 FEET (N.A.V.D. 88); THENCE ALONG AND WITH SAID ORDINARY HIGH WATER LINE, THROUGH A BEARING OF S.58°22'32"E., A DISTANCE OF 8.45 FEET; THENCE DEPARTING SAID ORDINARY HIGH WATER LINE, S.12°55'53"W., A DISTANCE OF 118.63 FEET; THENCE N.60°52'30"W., A DISTANCE OF 8.33 FEET TO THE POINT OF BEGINNING. THE ABOVE DESCRIBED LAND CONTAINS 0.02 ACRES, MORE OR LESS (951 SQUARE FEET).

EXHIBIT

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PIER EASEMENT 5

A PORTION OF LAKE ACCESS TRACT E OF "AVONLEA PHASE 2", AS PER PLAT THEREOF RECORDED IN PLAT BOOK '11', PAGES 1 THROUGH 5 INCLUSIVE, OF THE PUBLIC RECORDS OF MARION COUNTY, FLORIDA, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCE AT THE S.W. CORNER OF SAID LAKE ACCESS TRACT E; THENCE ALONG THE WESTERLY BOUNDARY OF SAID TRACT E, N.04°00'15"E., A DISTANCE OF 389.16 FEET TO THE POINT OF BEGINNING.

THENCE CONTINUE ALONG SAID WESTERLY BOUNDARY, N.04°00'15"E., A DISTANCE OF 28.49 FEET TO THE BEGINNING OF A NON-TANGENT CURVE CONCAVE SOUTHERLY, HAVING A RADIUS OF 150.00 FEET, A CENTRAL ANGLE OF 06°34'56", AND A CHORD BEARING AND DISTANCE OF N.81°57'55"E., 17.22 FEET; THENCE DEPARTING SAID WESTERLY BOUNDARY, ALONG THE ARC OF SAID CURVE, A DISTANCE OF 17.23 FEET TO THE END OF SAID CURVE; THENCE N.85°05'24"E., A DISTANCE OF 27.65 FEET; THENCE N.02°43'44"W., A DISTANCE OF 53.34 FEET TO THE ORDINARY HIGH WATER LINE OF SMITH LAKE AS ESTABLISHED BY THE DEPARTMENT OF ENVIRONMENTAL PROTECTION, BASED ON ELEVATION 52.76 FEET (N.A.V.D. 88); THENCE ALONG AND WITH SAID ORDINARY HIGH WATER LINE, N.80°24'48"E., A DISTANCE OF 45.32 FEET; THENCE DEPARTING SAID ORDINARY HIGH WATER LINE, S.02°43'44"E., A DISTANCE OF 58.95 FEET; THENCE N.87°24'32"E., A DISTANCE OF 65.12 FEET; THENCE N.89°35'41"E., A DISTANCE OF 15.95 FEET TO THE BEGINNING OF A NON-TANGENT CURVE CONCAVE SOUTHWESTERLY, HAVING A RADIUS OF 135.00 FEET, A CENTRAL ANGLE OF 61°19'05" AND A CHORD BEARING AND DISTANCE OF S.62°09'27"E., 137.68 FEET; THENCE ALONG THE ARC OF SAID CURVE, A DISTANCE OF 144.48 FEET TO THE END OF SAID CURVE; THENCE S.30°35'37"E., A DISTANCE OF 7.20 FEET; THENCE S.60°24'09"W., A DISTANCE OF 28.34 FEET; THENCE N.26°06'34"W., A DISTANCE OF 18.82 FEET; THENCE N.52°42'21"W., A DISTANCE OF 58.79 FEET; THENCE N.85°37'34"W., A DISTANCE OF 80.47 FEET; THENCE S.84°52'52"W., A DISTANCE OF 138.58 FEET TO THE POINT OF BEGINNING. THE ABOVE DESCRIBED LAND CONTAINS 0.25 ACRES, MORE OR LESS (11,083 SQUARE FEET).

PIER EASEMENT 6

A PORTION OF LOT 38 OF "AVONLEA PHASE 2", AS PER PLAT THEREOF RECORDED IN PLAT BOOK '11', PAGES 1 THROUGH 5 INCLUSIVE, OF THE PUBLIC RECORDS OF MARION COUNTY, FLORIDA, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCE AT THE S.E. CORNER OF SAID LOT 38; THENCE ALONG THE EASTERLY BOUNDARY OF SAID LOT 38, N.04°00'15"E., A DISTANCE OF 389.16 FEET TO THE POINT OF BEGINNING.

THENCE DEPARTING SAID EASTERLY BOUNDARY, S.84°52'52"W., A DISTANCE OF 11.39 FEET; THENCE S.38°23'45"W., A DISTANCE OF 29.04 FEET; THENCE S.21°35'23"W., A DISTANCE OF 1.47 FEET; THENCE N.67°15'11"W., A DISTANCE OF 26.25 FEET; THENCE N.24°43'05"E., A DISTANCE OF 15.14 FEET TO THE BEGINNING OF A NON-TANGENT CURVE CONCAVE SOUTHEASTERLY, HAVING A RADIUS OF 40.00 FEET, A CENTRAL ANGLE OF 42°32'17" AND A CHORD BEARING AND DISTANCE OF N.44°50'02"E., 29.02 FEET; THENCE ALONG THE ARC OF SAID CURVE, A DISTANCE OF 29.70 FEET TO THE POINT OF COMPOUND CURVATURE WITH A CURVE CONCAVE SOUTHERLY, HAVING A RADIUS OF 150.00 FEET, A CENTRAL ANGLE OF 11°44'52", AND A CHORD BEARING AND DISTANCE OF N.72°48'01"E., 30.70 FEET; THENCE ALONG THE ARC OF SAID CURVE, A DISTANCE OF 30.76 FEET TO THE END OF SAID CURVE, AND THE AFORESAID EASTERLY BOUNDARY OF SAID LOT 38; THENCE ALONG SAID EASTERLY BOUNDARY, S.04°00'15"W., A DISTANCE OF 28.49 FEET TO THE POINT OF BEGINNING. THE ABOVE DESCRIBED LAND CONTAINS 0.04 ACRES, MORE OR LESS (1,604 SQUARE FEET).